

Declaration, and the Declaration indicates that the Defendant's use of the credit card is an act of acceptance of the terms, there is no evidence that these terms were provided to Defendant. Contending that the agreement "was made available to Defendant for review and objection," (Paragraph 11, Declaration), is insufficient. Just how was this agreement made available? Did Plaintiff provide any notice to Defendant that the terms were available? There is no statement from Mr. Brophy showing that it is the custom and practice of US Bank to mail these terms to the Defendant upon receiving Defendant's application.

Plaintiff does not make a prima facie showing of the existence of a contract.

Disposition

The Court finds and orders as follows:

2. The MSJ is DENIED.
3. Court will prepare the Order.

11. 9:00 AM CASE NUMBER: L25-11299

CASE NAME: WELLS FARGO BANK, N.A. VS. LALEH NIKBAKHT

***HEARING ON MOTION FOR DISCOVERY FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSION AS ADMITTED**

FILED BY: WELLS FARGO BANK, N.A.

***TENTATIVE RULING**

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration, on 4/6/26.

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," to their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer, which is the same address where Defendant was personally served with process.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order, and serve Defendant with a copy of the filed Order.

12. 9:00 AM CASE NUMBER: L25-11390

CASE NAME: CITIBANK N.A. VS. EUGENE WOOLFORK

***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AND JUDGMENT, IF ENTERED**

FILED BY: WOOLFORK, EUGENE

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Defendant filed a Motion, on 4/24/26, to set aside entry of default, under Section 473(b) of the CCP, claiming he was not personally served with process. Defendant writes that his nephew left the "papers" for him on his desk, that at a third party agency did not see his case "in the systems," and that he was experiencing a great amount of stress.

Plaintiff filed a Response, contending that the proof of service, reflecting personal service by a registered process service, which contradicts Defendant's claim. The proof of service, filed 11/3/25, reflects that the server provided the documents to a person at the same address listed by Defendant on his Motion, who acknowledged that he was, in fact, the Defendant.